

STATE OF NEW YORK

7363--B

R. R. 191

2025-2026 Regular Sessions

IN ASSEMBLY

March 25, 2025

Introduced by M. of A. SANTABARBARA, SHIMSKY, BURDICK, RAMOS, ZINERMAN
-- read once and referred to the Committee on People with Disabilities
-- committee discharged, bill amended, ordered reprinted as amended
and recommitted to said committee -- reported and referred to the
Committee on Rules -- ordered to a third reading -- amended on the
special order of third reading, ordered reprinted as amended, retain-
ing its place on the special order of third reading

AN ACT to amend the mental hygiene law, in relation to protecting the
communication rights of individuals with disabilities

The People of the State of New York, represented in Senate and Assem-
bly, do enact as follows:

1 Section 1. The mental hygiene law is amended by adding a new section
2 13.45 to read as follows:

3 § 13.45 New York state communication bill of rights for individuals with
4 disabilities.

5 In order to ensure that each person with a disability is able to lead
6 a life of dignity, all persons with a disability shall have the right to
7 communicate in their preferred manner and all staff and providers under
8 this section, shall have the obligation to ensure and support such
9 rights, which shall include, but not be limited to:

10 (a) the right to utilize any communication method that meets their
11 needs, including but not limited to:

12 (1) augmentative and alternative communication (AAC) techniques and
13 devices;

14 (2) spelling boards, letterboards and typing-based communication;

15 (3) sign language and non-verbal gestural systems; and

16 (4) speech-generating devices or any other assistive technology;

17 (b) the right to have such individual's communication method recog-
18 nized and supported in schools, community residences, and public insti-
19 tutions;

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 (c) the right to speech therapy and communication support by duly
2 licensed professionals without arbitrary restrictions;

3 (d) the right to have at least one trained staff member available in
4 every facility or program to support individuals who require specialized
5 communication assistance;

6 (e) the right to receive appropriate communication supports from
7 trained staff, including direct support professionals (DSPs), educators,
8 and healthcare providers; and

9 (f) the right to experience no restrictions or bans on an individual
10 with disabilities' communication method.

11 § 2. This act shall take effect on the one hundred eightieth day after
12 it shall have become a law.